

[doc. web n. 10107986]

Provision of November 14, 2024

Register of provisions

n. 699 of November 14, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, Members, and
Secretary General Fabio Mattei;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016, concerning
the protection of natural persons with regard to
the processing of personal data, as well as the free
movement of such data and repealing Directive
95/46/EC (General Data Protection Regulation, hereinafter “Regulation”);

HAVING REGARD to the Code regarding the protection of personal data
(legislative decree June 30, 2003, n. 196), as
amended by legislative decree August 10, 2018 n. 101, containing
provisions for the adaptation of the national
legal system to the aforementioned Regulation (hereinafter
“Code”);

HAVING SEEN the documentation on file;

HAVING SEEN the observations made by the Secretary
General pursuant to Article 15 of the Guarantor's
Regulation n. 1/2000;

REPORTING Prof. Pasquale Stanzione;

PREMISED

1. THE INSTRUCTIONAL ACTIVITY CARRIED OUT

With a complaint dated December 23, 2022, Mr. XX
complained about receiving unwanted emails at
his email address indicated in the insurance policy
taken out, on behalf of a third party, with D'Anna Assicurazioni S.r.l. (hereinafter
“D'Anna” or “Company”). In particular, the interested party,
after opposing further processing with
communication dated December 14, 2021, continued to
receive promotional emails on December 19, 2021,
and even a year after the original opposition request
(December 19, 2022).

On March 14, 2024, the Office made a request for information to
D'Anna, pursuant to Article 157 of the Code, to which the Company
responded with communication received on April 3, 2024, stating that it had sent the complained
emails

“during the duration of the contractual relationship (and
therefore while the consent to the processing of [...] personal data [...] was still valid).” It also
stated that it had not followed up on the
request to revoke consent to receive promotional
communications as it was made by the interested party via email and, therefore, was not
considered sufficient to ensure “secure reliability

regarding the identity of the sender.” For this reason, the Company would have prepared “the necessary forms for the [...] revocation of consent” which the complainant never signed. In any case, “only in 2023, following the cancellation due to non-renewal of the contract” were Mr. XX’s personal data (specifically the email address) deleted from the Company’s servers.

2. THE CONTESTATION OF VIOLATIONS

With a note dated April 23, 2024 (prot. n. 0050690/24), notified on the same date, the Company was informed of the initiation of the procedure, pursuant to Article 166, paragraph 5, of the Code, for the adoption of any measures referred to in Article 58, paragraph 2, of the Regulation, recognizing D’Anna’s responsibility for the alleged violation of the following provisions of the Regulation:

- Articles 12, 17, and 21 of the Regulation for failing to register the opposition to receiving promotional communications and the revocation of consent for commercial purposes made by the interested party, due to the existing contractual relationship and for considering the email channel inadequate for identifying the requester;
- Articles 12 and 13 of the Regulation for the absence, on the Company’s website, of a text regarding the information on the processing of personal data collected through the online form for requests for “a personalized quote”; such information was not found in other sections or in the footer of the same website.

3. DEFENSIVE MEMORIES AND FURTHER INSTRUCTIONAL ACTIVITY

On May 22, 2024, the Company submitted its defensive memories regarding the aforementioned initiation of the procedure of April 23, 2024.

Specifically, the Company noted that the email, attached to the complaint to the Authority, with which the interested party would have requested D’Anna to delete his personal data bore a handwritten date and, therefore, such documentation cannot in any way constitute proof of the sending of the aforementioned request on that specific date (December 14, 2021). Thus, the document produced to the Authority is “tampered with, fabricated, and therefore devoid of any factual and legal relevance.” The Company also clarified that “the email subject to contestation [...] was linked to a policy held by another party.” In fact, this policy had been signed by the complainant on behalf of and in the interest of a third party and, on that occasion, he had given consent for promotional purposes. Therefore, D’Anna believed it had “operated regarding the processing of the complainant’s personal data in compliance with the consent given by him and during the duration of the contractual relationship [...] In fact, it is evident from the records – the Company added - that Mr. XX was bound by a contractual relationship with

D'Anna Assicurazioni S.r.l. at least until [..]

January 13, 2022, the expiration date of the policy [...]

taken out by the complainant on behalf of a third party."

Furthermore, in the "privacy document," attached to the

policy "is regularly signed by the interested party," clearly indicated XX (hereinafter "XX") as the subject to whom requests for access, updating, correction, and deletion of data could be made, as well as objections to further processing. Therefore, according to the Company, if Mr. XX had wanted to revoke his consent for promotional purposes, he should have contacted XX and not D'Anna Assicurazioni S.r.l. "In fact," it was specified, "D'Anna Assicurazioni acts as the agent of XX, operating and acting for XX s.p.a. clients only following a mandate from XX. The Client, at the time of signing the privacy forms, commits [...] to XX and not to the agent (D'Anna Assicurazioni s.r.l.)."

In summary, based on the reconstruction made by the Company, the following emerged:

- Mr. XX was bound by a contractual relationship with XX and not with D'Anna, at least until 13.01.2022, the expiration date of the policy;
- at the time of signing the aforementioned policy, the interested party also gave consent for promotional purposes and not only for insurance purposes;
- the complainant did not submit a request for deletion to XX, as indicated in the "privacy document" attached to the contract.

Regarding the website, D'Anna stated that it relied on an external company for its creation, which, after the communication of the initiation of the procedure, would have inserted the information on the processing of personal data. In any case, the Company clarified that "the online form, although present on D'Anna's website [...], has never functioned in practice, meaning that it has technically never been possible in any circumstance [...] to enter the [...] personal data. [...]"

The above circumstance made it necessary to formulate an additional request for information to D'Anna, pursuant to Article 157 of the Code, aimed at clarifying the mandate relationship with XX by providing the relevant contractual documentation and any designation of roles in the processing of personal data. With this note (ref. prot. 0070774/24 of June 11, 2024), the Authority also requested to "clarify whether the data provided by XX is intended to implement the database of D'Anna Assicurazioni S.r.l. as well, for what purposes, and if it concerns marketing and profiling purposes, for what time periods," as well as to describe "the procedures for receiving any requests for objections to further processing [...], specifying whether such requests are also recorded in [D'Anna's] systems and in what manner."

In the response received on July 1, 2024, the Company, confirming that it acts as an agent on behalf of XX (mandator), did not provide the requested contractual documentation, deferring to the Authority for verification through consultation in the IVASS Register. Furthermore, it declared that it does not hold its own database but operates "its agency activity exclusively using the portal and the data held by XX." Finally, for the fulfillment of requests from interested parties for "denial/modification of consents," it represented the dual possibility of "going to the agency to sign the revocation form" and "using the XX application on their mobile phone, or via the web, on the XX site."

The response provided by D'Anna was not deemed satisfactory since the Company did not produce the requested documentation that would have allowed defining the role and the associated responsibilities attributable to D'Anna in relation to XX, within the framework of the regulations on personal data protection.

Therefore, on July 4, 2024, the invitation to the Company to fulfill the information request of June 11, 2024 (ref. prot. n. 0082592/24) was renewed, and it was also requested to clarify "the methods by which customer data acquired from XX is communicated to D'Anna Assicurazioni S.r.l., indicating the legal basis invoked to legitimize such communication," as well as to specify "whether the data of XX customers is intended to also implement the database of D'Anna Assicurazioni S.r.l. or to describe the methods of access by the latter to the XX database. Finally, it was not clarified whether any requests for objections to further processing expressed by the interested parties are also recorded in the

systems of this Company and in what manner."

In the communication of July 10, 2024, the Company confirmed the arguments expressed in the response of July 1, 2024, and attached the mandate contract signed with XX, titled "Letter of Appointment as Agent."

4. LEGAL ASSESSMENTS

With reference to the factual profiles highlighted above, also based on the statements of the Company, for which the declarant is responsible pursuant to Article 168 of the Code, the following legal assessments are made.

4.1. On the qualification of roles

The Company has represented and proven that it holds the role of "mandatary agent" on behalf of XX in the insurance sector; this qualification, according to the Company, would be suitable to exempt D'Anna from any liability charges also in relation to the processing of the complainant's personal data for commercial purposes. Thus, the latter, in order to have his request for data deletion satisfied, should have addressed XX and not, as occurred, D'Anna. In this regard, it is necessary to first highlight that the negotiation and signing of the mandate contract the documentation provided, any formal agreements or clarifications regarding the roles of the parties in the processing of personal data. The absence of such documentation implies that the D'Anna cannot simply be classified as a mere data processor without a formal designation.

1. The agreements signed with XX pertain solely to civil law institutions aimed at regulating the legal relationships between the parties, but do not provide any evidence regarding the correct treatment of personal data. Indeed, the Company has provided, during the defensive phase, only formal elements, mainly related to the legality of the contract, without producing the necessary evidence of any agreements that may have been made for the processing of data for promotional purposes.

2. What is contested in this case does not concern contractual aspects, which cannot in any way be linked to the protection of personal data or the tasks assigned to the Authority, but rather the absence, from an evidential standpoint, of evidence proving the activities that may have been delegated to D'Anna in carrying out advertising campaigns also on behalf of XX, as well as the formal designation of the role reviewed by the Company in the processing in question.

3. In any case, for the purpose of identifying the ownership effectively exercised in the processing of data for promotional purposes, it is necessary to examine the "extracontractual elements, such as the degree of real control exercised by one party, the image given to the data subjects, and their legitimate reliance based on this visibility" (see Opinion No. 1/2010 WP 169 adopted on February 16, 2010, by the Article 29 Working Party, replaced by the European Data Protection Board – EDPB – pursuant to EU Regulation 2016/679). Therefore, regardless of the contractual documentation that regulated the relationships between D'Anna and XX – which, as mentioned, does not necessarily have relevance for the qualification of roles in the processing of personal data – an analysis of the factual elements and circumstances of the case has been carried out.

4. As further clarified in the EDPB Guidelines 7/2020 (adopted on July 7, 2021, at https://www.edpb.europa.eu/system/files/2023-10/edpb_guidelines_202007_controllerprocessor_final_it.pdf), "It is established that the concept of data controller is a functional one, and therefore it is based on a factual rather than formal analysis" (see point 21).

5. That being duly clarified, based on the concrete conduct exhibited in this case, D'Anna is to be considered an autonomous data controller for personal data for commercial purposes.

6. First of all, it should be noted that the "Appointment Letter as Agent" – which was not produced in its complete version as it lacks the section dedicated to the "Special Conditions of the Specifications" – is only relevant to the contractual relationships between the parties and not to the qualification of roles in the processing of data: indeed, what appears to be guaranteed by the aforementioned act is solely the civil law scope of the contract and its characteristics, through which full mandate was granted to D'Anna regarding the "promotion of insurance contracts on behalf of the Company" (specifically XX)

“within the scope of insurance intermediation” (Article 1 of the General Conditions of the Specifications - “Object of the assignment”).

7. In the mandate contract, however, the processing of personal data is not regulated in any way, nor are the roles held by the parties defined (with the related designations as controller, processor, or joint controller) and the associated attributions for the alleged violations. The generic reference to compliance with obligations arising from the regulations on personal data protection provided for in Article 13 of the “Appointment Letter as Agent” (titled “Commitments of the parties”) does not allow for overcoming the described gaps regarding the role held by D’Anna nor the methods by which to carry out the processing for promotional purposes.

8. The only document produced by the Company related to the processing of data acquired in the contractual context is the so-called “privacy document,” attached to the policy signed by the complainant. From the reading of the text in question, it emerges that XX, as the data controller, may communicate the data, also for commercial and marketing purposes, to “third-party companies that [act] on behalf of the Controller or as autonomous controllers.” Among the recipients of the aforementioned data are the “Group companies” XX, among which D’Anna can certainly be included. This approach only confirms the reconstruction previously outlined regarding the recognition of autonomous ownership on the part of D’Anna in the processing of personal data for promotional purposes.

9. Furthermore, the communications complained of in the complaint were found to originate from D’Anna’s email address, which, at the bottom of the promotional messages, lists the telephone and email contacts as well as the registered office of the Company. The commercial communications, thus packaged, therefore unequivocally associate the receipt of the promotional message with an initiative of the Company itself. Such a configuration of the message must be deemed capable of generating in the recipients the belief that they have been contacted directly by D’Anna, and for this reason, the complainant initially reached out to the Company, at the email address found at the bottom of the aforementioned email and currently indicated in the privacy policy.

10. Lastly, the reconstruction proposed by the party, according to which D’Anna would not hold any role in the processing in question under the data protection regulations, is not shareable, nor can it be attributed to her the qualification of mere data processor, which, in any case, should have been formalized and not assumed “de facto” or on a residual basis. Indeed, as already represented, there are no records in the documentation provided.

acts, the instructions given by the data controller-XX for the promotional activity. Such instructions, pursuant to Article 28, paragraph 3, of the Regulation, must be governed “by a contract or other legal act in accordance with Union law or the laws of the Member States,” of which, as stated, no evidence has been produced, despite the explicit request from the Authority on June 11, 2024, renewed on July 4, 2024.

Therefore, D’Anna has carried out the processing of personal data in a completely autonomous and independent manner, defining the purposes (promotional) and the methods of contact (email), in the absence of any operational instructions that may have been formalized by the client-XX, exceeding, in fact, the role of mere processor.

In conclusion, based on the factual elements highlighted above, the Company has operated in full and substantial adherence to the definition of data controller as per Article 4, point 7, of the Regulation.

4.2. On the exercise of rights

From what has emerged in the documents, based on the statements provided by D’Anna in the defense memorandum (as referred to in point 3 of this provision), to which full reference is made, it is confirmed that the Company, as the data controller, did not satisfy the request for deletion of data, as well as the opposition to further processing, made by the complainant; in fact, the conduct complained of by Mr. XX has not been interrupted in any way, as he received two additional unwanted emails on December 19, 2021, and in December 2022, one year after the deletion request and after 11 months from the termination of the contract (which occurred on January 13, 2022).

In any case, it should be noted that consent to marketing expressed "voluntarily" within the framework of a contract remains valid until the express revocation by the data subject, regardless of the expiration of the contractual terms. Therefore, even in the presence of the optional consent originally provided by the complainant for the marketing purposes pursued by the Company, the subsequent opposition to processing would in any case nullify the effectiveness of the consent itself. Ultimately, dissent or opposition to further processing always prevails over any consent originally given (see Article 7, paragraph 3, of the Regulation; see, in this regard, provision of January 15, 2020, no. 7, web document no. 9256486 at www.gpdp.it; see provision of March 11, 2021, no. 99, web document no. 9577065 at www.gpdp.it). In this case, as represented above, the opposition expressed by the data subject was not adequately recorded since further unwanted emails were received after the express denial.

Furthermore, it is believed that the formal issues raised by the Company regarding the request for deletion of data made by the data subject on December 14, 2021, as described in point 3 of this provision, can be overcome. This is because following that request, another request of similar content was made on December 19, 2021, complete with the relevant header and, therefore, including all the elements (header, sender, recipient, date, and time) necessary to consider the receipt of the act itself fully perfected and its acknowledgment. The request of December 19, 2021, carefully documented, constitutes irrefutable evidence of the right to deletion exercised by the data subject and the full knowledge by the data controller, who, as stated, did not satisfy it. It should be noted, however, that D'Anna's response was provided to the data subject on December 14, 2021, precisely on the same date on which the latter claims to have sent the first deletion request. There is also evidence of another communication, sent on the same December 14, 2021, to D'Anna, in which the data subject made himself available to provide details for the complete fulfillment of his deletion request. This representation does not allow for the exclusion that the data subject's request was made precisely on December 14, 2021, despite the copy produced to the Authority being devoid of a header.

However, regardless of the formal defect found in the first request of December 14, 2021 - which, as stated, appears to be overcome by the subsequent communication of December 19, 2021 - the Company has demonstrated full knowledge of the data subject's requests to which, by its own express admission, it did not respond solely due to issues related to the identification of the complainant caused by the use of a different channel (email) from that provided (form) for the revocation of consent to marketing.

In this regard, while it is true that the data subject did not use the form made available by the Company (of which no evidence was provided), it should be noted that he clearly expressed his opposition, and he did so on more than one occasion, to the point of having to turn to the Authority. Moreover, as represented above, in the email exchange of December 14, 2021, with D'Anna, the complainant provided assurances regarding his identity, claiming the association of his email with the records of the third party contracting the insurance policy, confirming, in this circumstance, the information already in the possession of the Company.

In this regard, it is noted that Article 12, paragraph 6, of the Regulation allows the data controller to request further information that may be necessary to confirm the identity of the data subject, but only if it has reasonable doubts about the identity of the person making the request. This reasonableness parameter is referenced.

also be exercised "at any time" (Article 21, paragraph 2 of the Regulation). The request of the data subject was not considered, nor was the opposition to the receipt of further unwanted emails acknowledged. For these reasons, it is deemed appropriate to confirm the violation of the provisions contained in Articles 12, 17, and 21 of the Regulation and, consequently, it is ordered that the Company, pursuant to Article 58, paragraph 2, letter d) of the Regulation, adopt appropriate technical and organizational measures to facilitate the exercise of the rights provided for by data protection legislation and to satisfy, without unjustified delay, the related requests.

4.3. On online data processing

With reference to the website, D'Anna stated that it had made available the text of the information on

the processing of personal data collected through the online form, which it highlighted as non-functional.

From a verification conducted by the Office on August 8, 2024, for which screenshots were obtained, it emerged that, contrary to what the Company claimed, the online form to obtain "a personalized quote" found at the link <https://www.dannaassicurazioni.it/contatti.asp?invia=true> allows users to enter their data (such as name, contact details, and email) and to finalize the request by clicking the "Send" button, subject to authorization for the processing of personal data. Moreover, it was confirmed that all fields, including the one labeled "Message" where quote requests can be entered, were mandatory, creating a legitimate expectation among the data subjects that the procedure had been successful. It should be noted that, following the described completion, no response messages were received at the contact details provided in the aforementioned form from the Company.

If, as claimed by the Company, this online form "has never worked in practice," its continued presence, even after the Authority's challenge, on D'Anna's website would be inexplicable, nor would the associated informational text, albeit recently added, appear necessary. In fact, if it is true that the data collected through the aforementioned online form have "never" been used due to the alleged inactivity of the form, the processing described in the privacy notice aimed at providing the insurance services requested by users could not be carried out without the provision of data. This indicates a clear disconnect between the formal level (related to the processing described in the privacy notice) and the factual level of the activities actually carried out.

In this regard, the Authority has repeatedly emphasized the principle of transparency, which entails the easy comprehensibility of the informational message with specific regard to the methods and purposes of the processing corresponding not only to the consents requested but, even before that, to the actual objectives pursued. There is a need for correspondence between the information pursuant to Article 13 of the Regulation and the effectiveness of the processing carried out, in order to fully implement also Article 12 of the Regulation, that is to say, the principle of transparency, which stands as a fundamental and innovative criterion of legitimacy for the processing itself (see provision no. 7 of January 15, 2020, web document no. 9256486, at www.gpdp.it).

It is therefore deemed appropriate to confirm the violation of the provisions contained in Articles 12 and 13 of the Regulation and, consequently, it is ordered that the Company, pursuant to Article 58, paragraph 2, letter d) of the Regulation, provide the data subjects with suitable information indicating the processing operations actually carried out by D'Anna (Articles 12 and 13 of the Regulation).

5. CONCLUSIONS

In light of the arguments set forth in point 4 of this provision, the contested violations are deemed confirmed, and it is necessary to:

- pursuant to Article 58, paragraph 2, letter d) of the Regulation, order D'Anna to adopt appropriate technical and organizational measures to facilitate the exercise of the rights provided for by data protection legislation and to satisfy, without unjustified delay, the related requests, including the right of opposition that can...

to provide the data subjects with a suitable information notice indicating the processing operations actually carried out by D'Anna (Articles 12 and 13 of the Regulation). Finally, with regard to the processing already carried out and considering the violations identified above, it is believed that the conditions exist for the application of an administrative pecuniary sanction pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation.

6. ORDER FOR THE APPLICATION OF THE ADMINISTRATIVE PECUNIARY SANCTION

Based on the above, various provisions of the Regulation and the Code have been violated in relation to processing activities carried out by D'Anna Assicurazioni S.r.l., for which it is necessary to apply Article 83, paragraph 3, of the Regulation, according to which, if, in relation to the same processing or related processing, a data controller violates, with intent or negligence, various provisions of the Regulation, the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation, resulting in the application of only the sanction provided for by Article 83, paragraph 5, of the Regulation.

For the purposes of quantifying the administrative sanction, the aforementioned Article 83, paragraph 5, sets the maximum penalty at the sum of 20 million euros or, for companies, at 4% of the worldwide annual turnover of the previous financial year if higher, specifying the methods for quantifying the aforementioned sanction which must “in any case [be] effective, proportionate and dissuasive” (Article 83, paragraph 1, of the Regulation), identifying, for this purpose, a series of elements, listed in paragraph 2, to be evaluated when quantifying the relevant amount.

As aggravating circumstances to be considered in this case, the following should be taken into account:

1. the negligent nature of the conduct, given that the rules for the protection of personal data were completely ignored by the data controller until the intervention of the Guarantor (Article 83, paragraph 2, letter b, of the Regulation).

As mitigating factors, it is considered that the following should be taken into account:

1. the nature of the data processed, consisting of common personal and contact data, which nonetheless refer to an isolated case (Article 83, paragraph 2, letter g of the Regulation);
2. the absence of previous proceedings initiated against the Company (Article 83, paragraph 2, letter e of the Regulation);
3. the timely intervention made on the text of the privacy notice available on the website, although rendered useless in the case of the data requested via the online form as allegedly not used for the purposes of processing described therein (Article 83, paragraph 2, letter d of the Regulation).

In an overall perspective of necessary balancing between the rights of data subjects and business freedom, it is necessary to prudently evaluate the aforementioned criteria, also in order to limit the economic impact of the sanction. Therefore, it is believed that - based on the complex of the elements mentioned above - an administrative sanction of a payment of the sum of 5,000.00 euros (five thousand/00) should be applied to D'Anna Assicurazioni S.r.l., equal to 0.025% of the maximum administrative penalty of 20 million euros.

In this case, it is also believed that the accessory sanction of publication on the Guarantor's website of this provision should be applied, as provided for by Article 166, paragraph 7, of the Code and Article 16 of the Guarantor's Regulation No. 1/2019.

In implementation of the principles set forth in Article 83 of the Regulation, the imposition of this accessory sanction appears reasonable and proportionate, given that the Company has demonstrated a culpable insensitivity to the issue of personal data protection, particularly with regard to the inadequate management of the rights exercised by the complainant (in this case, opposition to further processing and revocation of consent to receive promotional communications) and the lack of transparency regarding the operations on the data acquired through the website, such as to jeopardize the informational self-determination of the data subjects and the legitimacy of the processing itself.

Finally, the conditions set forth in Article 17 of Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers delegated to the Guarantor, for the annotation of the violations identified herein in the internal register of the Authority, as provided for by Article 57, paragraph 1, letter u) of the Regulation, are met.

ALL OF THE ABOVE HAVING BEEN STATED, THE GUARANTOR

pursuant to Article 57, paragraph 1, letter f), of the Regulation, declares the processing described in the terms of the motivation carried out by D'Anna Assicurazioni S.r.l., with registered office at via Principe di Belmonte 94, 90139 Palermo, VAT No. 00544240823, unlawful; consequently:

- a) pursuant to Article 58, paragraph 2, letter d) of the Regulation, orders the Company to adopt appropriate technical and organizational measures to facilitate the exercise of the rights provided for by the legislation on personal data protection and to satisfy, without unjustified delay, the related requests, including the right of opposition that may be advanced “at any time” by the data subject;
- b) pursuant to Article 58, paragraph 2, letter d) of the Regulation, orders to provide the data subjects with...

an inadequate information notice in which the processing operations actually carried out by D'Anna are indicated (Articles 12 and 13 of the Regulation).

c) pursuant to Article 157 of the Code, orders D'Anna Assicurazioni S.r.l. to communicate to the Authority, within thirty days from the notification of this provision, the initiatives undertaken in order to implement the imposed measure; any failure to comply with the provisions of this point may result in the application of the administrative pecuniary sanction provided for by Article 83, paragraph 5, of the Regulation.

ORDERS

pursuant to Article 58, paragraph 2, letter i), of the Regulation, D'Anna Assicurazioni S.r.l., represented by its legal representative, to pay the sum of €5,000.00 (five thousand) as an administrative pecuniary sanction for the violations indicated in the reasoning; it is noted that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to settle the dispute by paying, within 30 days, an amount equal to half of the imposed sanction.

ORDERS

the aforementioned Company, in the event of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of €5,000.00 (five thousand), according to the methods indicated in the attachment, within 30 days from the notification of this provision, under penalty of the adoption of the subsequent executive acts in accordance with Article 27 of Law No. 689/1981;

PROVIDES

a) pursuant to Article 166, paragraph 7, of the Code, the full publication of this provision on the website of the Guarantor;

b) pursuant to Article 17 of the Guarantor's Regulation No. 1/2019, orders the annotation in the internal register of the Authority, as provided for by Article 57, paragraph 1, letter u) of the Regulation, of the violations and the measures adopted;

c) the publication of this provision pursuant to Articles 154-bis of the Code and 37 of the aforementioned Regulation No. 1/2019.

Pursuant to Article 78 of Regulation (EU) 2016/679, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150 of September 1, 2011, an appeal against this provision may be submitted to the ordinary judicial authority, with a petition filed at the ordinary court of the place where the data controller resides, or, alternatively, at the court of the place of residence of the data subject, within thirty days from the date of communication of the provision itself, or sixty days if the appellant resides abroad.

Rome, November 14, 2024

THE PRESIDENT

Stanzione

THE RAPPORTEUR

Stanzione

THE SECRETARY GENERAL

Mattei